

BEFORE THE STATE GRIEVANCE BOARD

STATE OF COLORADO

Case No. PY 94-04

FINAL AGENCY ORDER

IN THE MATTER OF THE DISCIPLINARY PROCEEDINGS REGARDING THE
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF
COLORADO OF CHARDIN BERSTO, M.A., LPC, LICENSE NO. 318,

Respondent.

This matter is a formal disciplinary proceeding held in accordance with part 7 of article 43 of title 12, C.R.S., and the "State Administrative Procedure Act," article 4 of title 24, C.R.S., in which the Colorado State Grievance Board ("Board") is acting pursuant to statutory authority.

1. On December 9, 1994, Administrative Law Judge Nancy Connick ("ALJ") issued an initial decision in the above referenced matter concerning Chardin Bersto ("respondent") which decision was served on the parties by mail on December 15, 1994. That decision is incorporated herein as though fully set forth.

2. Neither party filed exceptions to the initial decision.

3. On February 10, 1995, the Board considered the initial decision of the ALJ. Present and constituting a quorum were seven of the Board's regular members and two Licensed Professional Counselors augmenting panel members.

4. After review and discussion of the matter, being sufficiently advised in the premises, and having considered the entire record in this matter, including the fact that no exceptions to the initial opinion were filed, the Board voted to enter the following findings and final order pursuant to Part 7 of the title 12 of article 43, C.R.S., and the "State Administrative Procedure Act":

The Board hereby finds that no exceptions to the initial decision were filed so the initial decision of the ALJ becomes the decision of the Board under § 24-4-105(14), C.R.S., (1988). The Board adopts as its final agency order in this matter the findings of fact, conclusions of law, and recommended sanction of

the ALJ as contained in her initial decision dated December 9, 1994.

The Board orders that respondent's license to practice professional counseling in the state of Colorado is revoked.

DATED:

February 22, 1995

FOR THE BOARD:

A handwritten signature in black ink, appearing to read "Daniel R. Robinson", written over a horizontal line.

Daniel R. Robinson
Board Chairperson

**BEFORE THE STATE GRIEVANCE BOARD
STATE OF COLORADO**

CASE NO. PY 94-04

INITIAL DECISION

**IN THE MATTER OF THE DISCIPLINARY PROCEEDINGS REGARDING THE
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF
COLORADO OF CHARDIN BERSTO, M.A., LPC, LICENSE NO. 318,**

Respondent.

This is a disciplinary proceeding pursuant to Sections 12-43-701 to 712, C.R.S. (1991 and 1994), regarding the license to practice as a professional counselor of Chardin Bersto, M.A., LPC ("Respondent"). The State Grievance Board ("Board") summarily suspended Respondent's license on August 30, 1994. Hearing in this matter was held before Administrative Law Judge Nancy Connick on November 9, 1994. The Board was represented by James F. Carr, Senior Assistant Attorney General, and Respondent was represented by Steven L. Janssen, Esq.

PRELIMINARY MATTERS

On November 8, 1994, the parties filed Stipulated Facts for Hearing, in which Respondent admitted certain facts and admitted violations of Sections 12-43-704(1)(b), (g), and (q), C.R.S. (1991). These statutory violations were charged in Counts I, II and IV of the Notice of Charges. At the outset of the hearing, the Board withdrew Counts III and V, and these counts were dismissed.

FINDINGS OF FACT

Based on the Stipulated Facts for Hearing and the evidence as a whole at hearing, the Administrative Law Judge finds as follows:

1. On or about April 13, 1991, Respondent was licensed as a professional counselor in the State of Colorado and was issued license number 318. Respondent was licensed at all times relevant to this case. By order dated August 30, 1994, the Board summarily suspended Respondent's license.

2. Respondent received a master's degree in psychology from Sonoma State University and has practiced as a professional counselor since 1984. Over the past

ten years, he has held positions with a variety of public mental health agencies and has also maintained a private practice at the same time.

3. On or about July 9, 1991, Respondent entered into a professional and therapeutic relationship with client C.C., who is identified in this Initial Decision by her initials in order to protect her confidentiality. The purpose of this relationship was to provide C.C. with professional counseling and psychotherapy, as defined in Sections 12-43-601(4) and 12-43-701(9), C.R.S. (1991). Respondent began by providing couples therapy to C.C. and her husband but in August, 1991, began providing individual therapy to C.C. as well. Respondent met individually with C.C. on a weekly basis.

4. Until June, 1992, Respondent continued to provide couples therapy to C.C. and her husband and individual therapy to C.C. Respondent was also the co-therapist for psychotherapy and professional counseling with C.C.'s family.

5. In March or April, 1992, during the course of providing professional counseling and psychotherapy to C.C. and while in a therapy session, Respondent and C.C. kissed on the lips. Respondent realized immediately that this conduct was inappropriate, should not continue, and threatened his therapeutic relationship with C.C.

6. In April, 1992, after the kissing incident and during a therapy session, C.C. had contact with Respondent's penis, which was outside his pants. C.C. then performed fellatio on Respondent.

7. Throughout this time and to present, Respondent knew that sexual contact between a psychotherapist/professional counselor and his client was prohibited. Respondent did not seek any advice from any other person regarding how to handle the situation with C.C. after either the kissing or the fellatio incidents. He also never reported the incidents to anyone.

8. Respondent did not initiate the kiss or the fellatio with C.C. How Respondent's penis came to be outside his pants for C.C. to touch it is not established. Although Respondent testified that he resisted C.C.'s kiss and was reluctant regarding the fellatio, he freely admits that he did not try to stop C.C.

9. As of the time of the kiss, the touching of Respondent's penis, and the fellatio, Respondent knew that C.C. was infatuated with him and was engaging in significant transference whereby she put Respondent in the position of a powerful religious figure in the Hare Krishna faith. C.C. was a devotee of this religious figure.

10. Following the kissing and fellatio incidents, Respondent had an additional four or five individual therapy sessions with C.C. Three of the sessions were in

Respondent's home. Respondent scheduled therapy sessions in his home when he needed to reschedule regular appointments and his office space was unavailable.

11. During these additional therapy sessions, Respondent discussed with C.C. his discomfort at continuing their therapeutic relationship. Respondent had a hard time thinking that he could maintain appropriate boundaries to continue the relationship. He offered to refer C.C. to another therapist. Respondent testified that the additional four or five therapeutic sessions were necessary to discuss appropriate boundaries in order to insure that these boundaries were respected in C.C.'s future therapeutic relationships. This explanation is not credible.

12. The therapy relationship between Respondent and C.C. was discontinued on about June 11, 1992. Although Respondent testified that it was he who terminated the therapeutic relationship with C.C., the record does not clearly establish how the relationship was terminated.

13. The record reveals no other incident of sexual contact by Respondent with any patient other than C.C.

14. Respondent indicates that he made a mistake in judgment in his kissing, sexual contact and sexual penetration with C.C. He testified that C.C. bore some responsibility for her sexual involvement with him, but he indicated that it was his responsibility to maintain an appropriate boundary, which he did not do. Although he stated that C.C. approached him for these contacts, he faults himself for not turning her away.

15. At hearing, Respondent expressed remorse about what happened with C.C. and apologized to C.C., her family, his colleagues and the Board.

16. Generally accepted standards of practice prohibit a professional counselor from having sexual contact or penetration with a client. These standards prohibit a client's touching the genitals of a professional counselor or performing fellatio on him. As the result of C.C.'s touching Respondent's penis and performing fellatio on him, Respondent has failed to meet these generally accepted standards of practice.

17. Respondent pled guilty to the criminal offense of sexual contact with a client, which arose from his relationship with C.C. as described above. He was sentenced to one year of probation with several conditions: no contact with C.C., no treatment of women during the probationary period, and restitution of the cost of C.C.'s therapy session with him and of therapy sessions after the termination of his relationship with her. Respondent is currently on a payment schedule for his restitution obligations.

CONCLUSIONS OF LAW

1. The Board has jurisdiction over Respondent, his license, and the subject matter of this proceeding.

2. By permitting C.C. to touch his penis and engage in fellatio on him, Respondent engaged in sexual contact and sexual penetration with a client during the period of time in which a therapeutic relationship existed, in violation of Section 12-43-704(1)(q), C.R.S. (1991). "Sexual contact" is defined in Section 18-3-401(4), C.R.S. (1986), as the knowing touching of the actor's intimate parts (including external genitalia) by the victim when it can reasonably be construed as being for the purposes of sexual arousal, gratification, or abuse. "Sexual penetration" as defined in Section 18-3-401(6), C.R.S. (1986), includes fellatio.

2. By having sexual contact and penetration with C.C., Respondent acted or failed to act in a manner which does not meet the generally accepted standards of his practice, in violation of Section 12-43-704(1)(g), C.R.S. (1991).

3. Respondent's violations of Sections 12-43-704(1)(g) and (q), C.R.S. (1991), also constitute violations of Section 12-43-704(1)(b), C.R.S. (1991), which prohibits any violation of a provision or term of Article 43, Title 12, C.R.S.

INITIAL DECISION

Once grounds for disciplinary action against a licensee have been established, the Administrative Law Judge must determine the appropriate sanction. This may include revocation, suspension, probation or a letter of admonition. Section 12-43-705(3), C.R.S. (1991). The Board in this matter contends that Respondent's license to practice as a professional counselor should be revoked because his actions reflect seriously flawed judgment, he took no steps to prevent recurrence of his misconduct with C.C. after the kissing incident, he did not understand the powerful position he held in relation to C.C., and he is not safe to practice. Respondent, on the other hand, contends that a lesser discipline is appropriate. He urges the Administrative Law Judge to impose a one- or two-year suspension, resumption of practice only after a licensed psychologist evaluates him and opines that he would pose no threat of repeating an act of sexual penetration, and a one- or two-year probation with a practice monitor. Respondent contends that he deserves a second chance, that he can be rehabilitated, and that his proposal would insure public safety.

Respondent has engaged in extremely serious misconduct in relation to client C.C. He breached the trust accorded to him as a result of his professional status and exploited his therapeutic relationship with C.C. for his own personal gratification.

Although this conduct would be significant in any context, aggravating circumstances exist in this case. First, Respondent had been practicing for ten years and was well aware of his professional obligation to avoid sexual interactions with his clients. Although Respondent clearly understood his responsibilities, he deviated from them. Second, even when Respondent realized that his therapeutic relationship with C.C. was threatened by their kiss on the lips, he took no steps to avoid a repetition of this inappropriate behavior. He continued to provide therapy to C.C., he alerted no one, he sought no advice, and he even scheduled therapy sessions at his home in a setting more conducive to inappropriate behavior. Third, Respondent understood that C.C. viewed him as a religious figure to whom she was devoted and thus reasonably understood that he was in even a more powerful position than ordinarily assumed by a professional counselor. Fourth, Respondent permitted incremental steps toward the ultimate sexual act of fellatio. He could have ended the relationship with C.C. after the kiss or stopped it at the point when she was touching his penis, but he permitted these events to escalate to the point of sexual penetration. Fifth, Respondent's continuation of his relationship with C.C. after the fellatio incident shows continued poor judgment. Respondent's explanation of the need for the additional four or five sessions -- that they were necessary to discuss appropriate boundaries to prevent a recurrence of a boundary problem with C.C. -- is unsatisfactory. Sixth, Respondent's candid admissions of sexual misconduct are tempered to some extent by his own failure to report his conduct. Only when "caught" did Respondent assume responsibility for his actions.

Respondent's conduct is mitigated to some extent, however, by other circumstances. First, he has admitted his conduct, both in the criminal setting and in this disciplinary action. He has not sought to deny the sexual relationship with C.C. or to blame others for his conduct. Respondent is indeed to be commended for his admission of inappropriate sexual contact with C.C. Second, there is no evidence of inappropriate sexual behaviors with other clients. Respondent's sexual relationship with C.C. appears to be an isolated incident in Respondent's ten-year career. Third, Respondent exhibits genuine remorse regarding his misconduct toward C.C.

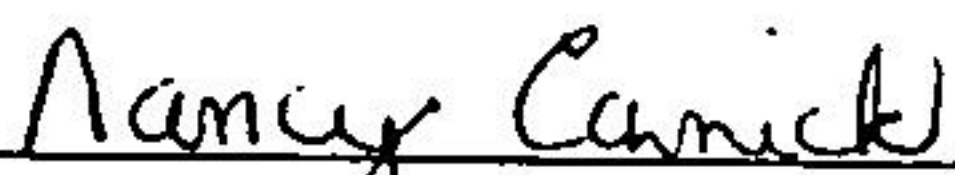
After considering the above mitigating and aggravating circumstances, as well as the seriousness of Respondent's misconduct, the Administrative Law Judge believes that revocation is the appropriate sanction in this matter. Respondent's admission of his sexual misconduct does not diminish the extraordinarily serious nature of that conduct, which is totally incompatible with his practice as a professional therapist. A professional therapist must act in a manner consistent with the significant trust which is placed in him by his clients. Under circumstances when C.C. placed even greater trust in Respondent than usual, Respondent breached this trust. Respondent provides no explanation to diminish the gravity of his misconduct or to excuse his continuation of a therapeutic relationship with C.C. for over a month after the fellatio incident. Under these circumstances, a suspension followed by probation

would not recognize the severity of Respondent's conduct or provide adequate protection to the public.

It is therefore the Initial Decision of the Administrative Law Judge that Respondent's license as a professional counselor in Colorado is revoked.

DONE AND SIGNED

December 9, 1994



NANCY CONNICK
Administrative Law Judge

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